



SPONSOR: Sen. Hansen & Rep. Heffernan & Rep. Burns &
Rep. Morrison
Sens. Huxtable, Lockman, Sokola; Reps. Griffith,
Lambert

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 210

AN ACT TO AMEND TITLE 26 OF THE DELAWARE CODE RELATING TO PUBLIC UTILITIES.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 1001, Chapter 10, Title 26 of the Delaware Code by making deletions as shown by strike
2 through and insertions as shown by underline as follows:

3 § 1001. Definitions.

4 As used in this chapter, unless the context otherwise requires:

5 (5) “Community-owned energy generating facility” means a renewable energy generating facility, where the point
6 of interconnection is located in the service area of a utility under the regulation of the Public Service Commission, that has
7 multiple owners or customers who share the output of the generator, which may be located either as a stand-alone facility or
8 behind the meter of a participating owner or customer. The facility shall be interconnected to the distribution system and
9 operated in parallel with an electric distribution company’s transmission and distribution facilities.

SYNOPSIS

This bill amends the definition of “Community-owned energy generating facility” in Title 26 of the Delaware Code, § 1001(5) by adding the requirement that the point of interconnection be located in the service area of a utility under the regulation of the Public Service Commission.

Author: Senator Hansen